

26TRCV00502 26TRCV00502

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Case Number: 26TRCV00502 Hearing Date: September 23, 2026 Dept: B

Moving Parties: Defendant Carlton Square

Homeowners Association

Responding Party: Plaintiff Cynthia Chaudhry

(1)

Motion

to Compel Further Responses to Form Interrogatories, Set One

(2)

Motion

to Compel Further Responses to Special Interrogatories, Set One.

The Court considered the moving, opposition, and reply papers.

RULING

See Order below.

BACKGROUND

On February

10, 2026, plaintiff Cynthia Chaudhry filed a complaint against Carlton Square Homeowners Association for negligence and premises liability based on a trip and fall on March 11, 2024.

On

April 22, 2026, defendant filed a cross-complaint against Roes 1-20.

LEGAL

AUTHORITY

45-Day

Rule: This motion must be served within 45 days after service of the response in question (extended if served by mail, overnight delivery, or fax; see CCP §1013); otherwise, the demanding party waives the right to compel any further response to the CCP §2031.010 demand. CCP §§2031.310(c), 2016.050; see *Sperber v. Robinson* (1994) 26 Cal. App. 4th 736, 745. The 45-day time limit is mandatory and jurisdictional. *Sexton v. Superior Court* (1997) 58 Cal. App. 4th 1403, 1410. The parties, however, can also agree in writing on a specific later date by which to file the motion to compel. CCP §2031.310(c).

Meet-and-Confer

Requirement: The motion to compel further responses must be accompanied by a declaration showing “a reasonable and good faith attempt” to resolve the issues outside of court (so-called “meet and confer”). CCP §§2016.040, 2031.310(b)(2).

Separate

Statement: Any motion involving the content of a discovery request or the responses to such a request shall be accompanied by a separate statement. This includes a motion to compel further responses to demand for inspection of documents or tangible things. CRC Rule 3.1020(a)(3).

Interrogatories

CCP

§2030.300 states: “(a) On receipt of a response to interrogatories, the propounding party may move for an order compelling a further response if the propounding party deems that any of the following apply: (1) An answer to a particular interrogatory is evasive or incomplete. . . . (3) An objection to an interrogatory is without merit or too general. (b) A motion under subdivision (a) shall be accompanied by a meet and

confer declaration under Section 2016.040. (c) Unless notice of this motion is given within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the propounding party and the responding party have agreed in writing, the propounding party waives any right to compel a further response to the interrogatories. . . .”

DISCUSSION

Defendant Carlton Square

Homeowners Association requests an order compelling plaintiff Cynthia Chaudhry to respond further to defendant’s Form Interrogatories, Set One, Nos. 2.11, 2.12, 2.13, 4.1, 6.3, and 12.1 and Special Interrogatories, Set One, Nos. 8 and 48.

Defense counsel states

in her declaration that on April 22, 2026, defendant served plaintiff with form and special interrogatories. On June 1, plaintiff served verified responses. On July 7, defense counsel sent a meet and confer email to plaintiff’s counsel that plaintiff’s responses were inadequate and requested further responses by July 13. On July 16, defense counsel sent a follow-up email explaining why further responses were necessary. As of the filing date of the motions, plaintiff had not served further responses.

In an opposition,

plaintiff’s counsel states in his declaration that supplemental answers were provided on August 7.

The Court rules as

follows: After the motions were filed, plaintiff served supplemental responses.

As to the Form Interrogatories, plaintiff’s supplemental responses state, “We stand by the responses given” as to Nos. 4.1 and 6.3 and provide further information as to the other form interrogatories at issue. The Court finds that the initial responses as to Nos. 4.1 and 6.3 were sufficient and code-compliant and the supplemental responses properly respond to the balance.

Thus, there is nothing to compel further.

As to the Special Interrogatories, plaintiff’s

supplemental responses state, "We stand by the responses given." The Court finds that plaintiff's responses are deficient. As to No. 8, plaintiff fails to state with specificity and particularity how plaintiff calculated her claimed damages. She provides only a lump sum number. As to No. 48, she was asked to state the date that she last had her eyes examined by a health care professional before the incident. She responded, "Never, I do wear glasses." The Court finds plaintiff's response unclear.

Sanctions

Defendant requests \$1410 (\$225/hr. x 6 hrs., filing fee) as to each motion against plaintiff and her attorney of record. The Court finds that sanctions are warranted in the amount of \$570 (\$225/hr. x 2 hrs., \$120 filing fee) against plaintiff and her attorney of record, Kenneth C. Yeager.

ORDER

The motion to compel further responses to form interrogatories, set one is DENIED.

The motion to compel further responses to special interrogatories, set one is GRANTED. Plaintiff is ordered to respond further to special interrogatories nos. 8 and 48, within twenty days.

Plaintiff and her attorney of record Kenneth C. Yeager are ordered to pay sanctions to defendant in the amount of \$570, in total for both motions within thirty days.

Defendant is ordered to give notice of ruling.